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Submitter Information

Name: Christopher Brooke

Email: [REDACTED]

General Comment

Companies must absolutely NOT be allowed to indiscriminately scrape data for free. This government survey is about making sure “that unnecessarily burdensome requirements do not hamper private sector AI innovation.” Copyright and creators’ rights to their own data and creations is not a “burden” to private industry. Tech companies don’t get free GPU chips for their AI datacenters just because “paying for electronics is a burden.” They don’t get to force their programmers to work for free—ie, slavery—because “paying humans to do their jobs is a burden.” Companies should not be able to indiscriminately steal the entire world’s cultural and creative output just because “acquiring training data is a burden.”

Google, Meta, OpenAI, etc, have already used huge datasets of stolen material to train their AI programs. Meta is currently fighting a court battle over its decision to torrent a massive slurry of illegally pirated books to train its program. These companies have glutted themselves on billions of stolen images and text and music taken from pirated databases and from their own users, mostly without permission and without giving those users a transparent and effective way to refuse. Now, these companies are asking the government to intercede for them when these people say “Wait, that’s not fair.”

This is not about scientific AIs or medical AIs—those advancements, which ACTUALLY benefit humanity, don’t require access to every fictional novel ever sold on Amazon. These tech companies want to change the law to allow themselves completely unrestricted access to other people’s information and artwork and creations so they can train chatbots and image generators and other commercial products. Corporations want a one-sided law to let them steal other people’s work. Nintendo and Disney can sue small-time artists for using their trademarked characters in fan-art, but now they want AI models trained using free access to every drawing I’ve ever created. Many of these programs, such as art generators like MidJourney, actively put talented and hardworking individual creators out of work and lead companies to fire their creative teams. It does not benefit the world, it does not benefit the American people, it does not benefit America’s competitive position in the global market. All it does is allow a bunch of greedy billionaires to build unnecessary commercial software on the backs of millions of people’s uncompensated work. “Unnecessarily burdensome requirements [that] hamper private sector AI innovation” is just corporate-speak for “having to pay for training data would make it harder to make billions and billions of dollars for free.”

The only model of AI training that is fair to individuals and to the creative industry is a model where AI companies have to get explicit permission to use data for training and have to fairly compensate the data’s creators. This is not a “burden”: Google and Amazon can track every site we visit, every ad we see, every word we type on our phones. Keeping track of where they get their data and who it’s created by is not a “burden” by any technical definition. It’s only a “burden” because people object to having their data trained on without permission and compensation.

AI needs to be regulated. AI training needs to be legally required to be based on opt-in models that properly track and compensate data owners who opt in. Anything else is exploitation that makes a few large companies wealthy and leaves individual people without jobs. The US government absolutely must NOT shift copyright policies to favor corporations over individuals.